

HOUSE BILL 461

By Farmer

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 16, Part 3, relative to online notaries
public.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-16-306(b), is amended by deleting the language "and" in subdivision (1), by redesignating subdivision (2) as subdivision (3), and by adding the following as a new subdivision (2):

(2) Completing a course of instruction concerning online notarization under subsection (e) and passing an examination administered by the course provider; and

SECTION 2. Tennessee Code Annotated, Section 8-16-306(c)(7), is amended by deleting the subdivision and substituting instead the following:

(7) A certification that the applicant has reviewed, understands, and will comply with the requirements of this part and the rules promulgated by the secretary of state under this part.

SECTION 3. Tennessee Code Annotated, Section 8-16-306, is amended by adding the following as a new subsection (e):

(e)

(1) The course of instruction on online notarization, as required under subdivision (b)(2), must cover, at a minimum:

- (A) Notarial laws;
- (B) Technology procedures of online notarizations; and
- (C) Ethical requirements for online notaries.

(2) The course of instruction on online notarization must be approved by the secretary of state or the secretary of state's authorized representative or designee.

SECTION 4. This act takes effect January 1, 2026, the public welfare requiring it.